

Council Meeting
November 8, 2023
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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, November 8, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

A motion was made by Councilor Stone to reconsider letter E – Diving board under old business.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Councilor Batchelder to accept the minutes of the October 25, 2023, City Council meeting.

Voice vote:

O’Hearne –

Batchelder -Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - - Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 8-0

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MAYOR'S NOTES

Thank you to everyone who came out to participate and run for the municipal elections.
Congratulate everyone that won their races.

Saturday, November 11th Veterans Day celebration at Broad Street Park 11:00 am.

Friday, November 24th Hometown Holiday liftoff will kick off at 2:00pm at Broad Street Park, there will be pictures with Santa, hot beverages and the lighting of the park. The night will end with the Santa parade from 5:15pm-7:00pm.

CITY MANAGER'S REPORT

Goats are done working at the old Gasworks site for the season. Thank you, Ben Nelson. The Claremont Middle School science class was able to observe the goats as a project all about sustainability.

Manager Manale updated the council the informal website committee has met a couple of times now; currently working on improvements for the current website and enhancing the public mobile and desktop use as well as making It ADA accessible.

After the council approves the Council approves the exemptions today the MS1 should be finalized by next week.

Stevens High School is hosting a large Political event this coming Saturday that may cause some traffic issues.

Manager Manale reminds the public of leaf pick up.

Councilor Contois inquires if the school coordinates events with the City

Manager Manale responds no.

Councilor Koloski would like a more in depth update in the manager's report on legal items.

APPOINTMENT TO BOARDS AND COMMITTEES

Councilor Stone expressed that he would like to wait on appointing anyone new to the Policy Committee until January as it is typically reserved for newly seated council.

Mayor Girard stated he noted this when he saw the date on the application and should hold off for a month.

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Councilor Contois states the individual on the application already sits on the board, therefor would be ok voting her reappointment.

Councilor Limoges feels the Council should wait on the new council appointment as well.

Councilor Stone explains this is a council standing committee.

Mayor Girard explains due to majority consensus the Council will hold off on Policy Committee appointment.

Fiske Free Library Board of Trustees

A motion was made by Councilor Contois and seconded by Councilor Stone to appoint Sophia Sushailo to seat A-2 of the Fiske Free Library Board of Trustees.

Voice vote:

O'Hearne –

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - -Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 8--0

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FISKE FREE LIBRARY BOARD OF TRUSTEES

MEMBERS

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DRAFT



PLANNING AND DEVELOPMENT
14 NORTH STREET
CLAREMONT, NH 03743
PH:(603)504-0347 FAX:(603)542-7033
EMAIL:kwadleigh@claremontnh.com

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RECEIVED
NOV 14 2023

Have you served on any City Board or Committee? Which ones and when?
YES, Fiske Free Library Board of Trustees - Alternate Seat since May 2023

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CITIZEN'S FORUM

Mayor Girard reminded all citizens may speak for 5 minutes on non-agenda items, and asked each person to announce their name and ward.

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Mike Tetu Ward I – binding charter amendment. Special assessment powers section 3 of city charter. Ordinance. Going out to bid. What is the City ordinance regarding city private property LWCF signed off on nonpark use in the lodge? Regarding Transfer Station, did not save money. See minutes 6:41pm. Tax rate. Free recycling program.

Brian Zutter Ward II- Read a letter. Mr. Zutter thanked the community for the chance to run for Assistant Mayor. Gave well wishes to Assistant Mayor Matteau in her upcoming term.

OLD BUSINESS

Ordinance 616 Disabled Exemption

Bob Mcarthy explains ordinance.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #616

PROPERTY TAX EXEMPTION FOR THE DISABLED

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:27-a and RSA 72:37-b, the Claremont City Code is hereby amended to revise Article II, Division 3 of Chapter 18 as follows:

Section 1. Property Tax Exemption for the Disabled

Sec. 18-53. Exemption for the disabled.

Revise Subsection (a), (2) and (3) of Section 18-53 to modify the annual benefit amount and net income and asset qualification standards to read as follows:

- (a) In accordance with New Hampshire RSA 72:37-b, the city shall provide for the exemption for disabled persons from property tax, that every inhabitant who is entitled shall be granted a thirty-five thousand dollars (\$35,000.00) property value exemption based upon the following additional eligibility criteria:
 - (2) Applicant must have had, in the calendar year preceding April 1 of the year in which the exemption is claimed, an annual net income from all sources of less than twenty-three thousand seven hundred dollars (\$23,700.00), if single, [or] a combined annual net income of less than thirty-two thousand dollars (\$32,000.00), if married. Such net income is to be determined by deducting from all monies received from any source whatsoever the amount or sum of any life insurance paid on the death of an insured,

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expenses and costs incurred in the course of conducting a business enterprise, [and/or] proceeds from the sale of assets; and

- (3) Applicant's net assets, as defined in RSA 72:37-b III(b), excluding the value of the residence and the land upon which it is located up to the greater of two (2) acres or the minimum single family residential lot size for that zone as specified in the city's zoning ordinance, must not exceed forty-two thousand three hundred dollars (\$42,300.00).

Section 2. Validity.

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 3. Effective Date.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the disabled for the tax year commencing April 1, 2023.

A motion was made by Councilor Batchelder and seconded by Assistant mayor Matteau to adopt Ordinance 616.

Councilor Batchelder read ordinance explanation into the record.

Open for public hearing no one spoke. Mayor closed the public hearing.

Roll call

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

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Koloski - Yes
Limoges - Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion carried 8-0

Ordinance 617 Elderly Exemptions

Bob McCarthy explained ordinance

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #617

PROPERTY TAX EXEMPTIONS FOR ELDERLY

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:27-a, RSA 72:39-a and RSA 72:39-b, the Claremont City Code is hereby amended to revise Article II, Division 4 of Chapter 18 as follows:

Section 1. Exemption amount and qualifications

Sec. 18-58 (1), (2), (3) and (4). Exemption amount and qualifications.

Revise Subsections (1), (2), (3) and (4) of Section 18-58 to increase the benefit amounts and qualifying net income and asset limits so that the provision shall read as follows:

In accordance with RSA 72:39-a and RSA 72:39-b, the city shall provide an exemption from real estate taxes, beginning in the tax year commencing April 1, 2023, for those individuals qualified for such exemption under RSA 72:39-a and RSA 72:39-b, as they may be amended from time to time, in the following manner:

(1) For a person sixty-five (65) years of age up to seventy-five (75) years of age \$54,000.00

(2) For a person seventy-five (75) years of age up to eighty (80) years of age \$90,000.00

(3) For a person eighty (80) years of age or older \$138,000.00

(4) To qualify, an unmarried taxpayer must have a net income of not more than twenty-six thousand five hundred dollars (\$26,500.00), or if married, must have a combined net income of not more than thirty-five thousand dollars (\$35,000.00). Net assets for either an unmarried taxpayer or, if married, combined assets must be not more than seventy-two thousand five

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hundred dollars (\$72,500.00), exclusive of the value of the taxpayer's residence and the land upon which it is located up to the greater of two (2) acres or the minimum single-family residential lot specified in the Claremont Zoning Ordinance for the zone in which the property lies. The combined net asset amount shall apply to a surviving spouse until the sale or transfer of the property by the surviving spouse or until the remarriage of the surviving spouse.(5)In addition, to qualify for an exemption under this section, the taxpayer must have been a resident of New Hampshire for at least three (3) consecutive years, own the real estate individually or jointly, or, if the real estate is owned by such person's spouse, they must have been married to each other for a least five (5) consecutive years.

Section 2. Validity.

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 3. Effective Date.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the elderly for the tax year commencing April 1, 2023.

A motion was made by Councilor Limoges and seconded by Councilor Koloski to adopt Ordinance 617.

Councilor Limoges read explanation into the record.

Mayor Girard opened a public hearing, No one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 8-0

Ordinance 618 Vets Credit

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Bob McCarthy explains ordinance

Councilor Koloski expresses the amount should be more.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #618

PROPERTY TAX CREDIT FOR VETERANS

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:28, the Claremont City Code is hereby readopted, Article II, Division 2 of Chapter 18 as follows:

DIVISION 2. - PROPERTY TAX CREDIT FOR VETERANS

Sec. 18-43. - Credit amount and qualifications.

- (a) In accordance with RSA 72:28, the city shall provide for a credit for veterans from property tax, that every inhabitant who is a veteran or the surviving spouse of a veteran shall be exempt each year from tax on his/her residential real estate in the amount of five hundred dollars (\$500.00).

Section 2. Validity.

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 3. Effective Date.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the elderly for the tax year commencing April 1, 2023.

A motion was made by Councilor Batchelder and seconded by Councilor Stone to adopt Ordinance 618.

Councilor Batchelder read ordinance into the record

Mayor Girard opened a public hearing, No one spoke. Mayor Girard closed the public hearing.

Roll call:
O'Hearne – Yes

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Batchelder - Yes
Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges - Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion carried 8-0

Resolution 2024-18 North and Main Supplemental Appropriation

A motion was made by Councilor Koloski and seconded by Councilor Stone to take Resolution 2024-18 off the table.

Manager Manale asks by administration that this item be removed.

RESOLUTION 2024-18

Supplemental Appropriation for Infrastructure Improvements –North & Main

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire (the "City") received Federal Highway Improvement Grant funds in 2011 for the reconstruction of the North and Main Street intersection anticipated to cost \$4,810,000 {the "Grant"}; and

WHEREAS acceptance of this Grant required that the City provide local matching funds in the amount of \$785,000 for the North and Main reconstruction project (the "Project") which was done as part of the 2011 bond as well as \$100,000 appropriated in the 2011 Budget;

WHEREAS increased costs required the City to provide additional local matching funds in the amount of \$88,416.75 from Resolution 2021-14 and \$26,584.25 from Resolution 2023-24; and

WHEREAS the project has been bid with expenditures exceeding the engineer's project estimates;

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of \$440,000 as the City's match for the Project, said sum shall be in addition to the funds already appropriated, spent and/or encumbered previously, with offsetting revenue to come from the Municipal Transportation Capital Reserve Fund in the amount of \$225,000, the Reconstruction or Acquisition of City Owned Facilities Fund in the amount of \$65,000, and Fund Balance in the amount of \$150,000 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or

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their designees, to withdraw said funds;

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution.
(2B Vote Required)

Dated this 25th day of October, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Stone and seconded by Councilor Batchelder to reconsider the implementation of the diving board/bracket being ordered, not to exceed three thousand dollars.

Roll call:

O’Hearne –

Batchelder - Yes

Stone -Yes

Matteau -Yes

Koloski - Yes

Limoges -Yes

Contois -No

Mooshian - Yes

Girard - Yes

Motion carried 7-0

A motion was made by Councilor Stone and seconded by Councilor Batchelder to appoint the City Manager, Yoshi Manale to facilitate the diving board in its entirety being installed within 90 days and any funds that are expended to come out of the existing Claremont Community Center budget.

Councilor Koloski states at this point throwing money at the diving board no longer interests him.

Councilor Stone states this issue needs to be resolved.

Councilor Batchelder states he would mirror what councilor stone said.

Councilor Contois states he has not have had any constituents ask him about a diving board at the center.

Councilor Stone states constituents from Ward II have reached out to him regarding the diving board.

Councilor Koloski states people have asked the status of the diving board. The people would like to see something else added to the pool.

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Roll call:

O’Hearne –

Batchelder - Yes

Stone -Yes

Matteau -Yes

Koloski - No

Limoges -Yes

Contois - No

Mooshian - No

Girard - Yes

Motion carried 5-3

NEW BUSINESS

Swearing in of Chief Chamberlain, Jamie Young, Diane Mulholland

Decamp Transfer Station Update

Director Gleason gives an update on the 90-day notice on the Transfer Station.

Mayor Girard asks Mr. Decamp to come up to speak.

Mr. Decamp introduces KC Gardner, the company’s office manager.

KC Gardner thanks all of the kind customers the transfer station has had.

Councilor Batchelder asks if there are videos that the Council can review.

KC Gardner Yes, we have documentation although the company has not looked back at the videos.

Councilor Batchelder apologizes for the patron’s behavior on how the staff has been treated.

KC Gardner explains the 14-year-old employee was sworn and yelled at by patrons.

Councilor Stone apologizes for the behavior of the patrons.

Assistant Mayor Matteau expresses disappointment in the rude patrons and says thank you for the work the company has done for the City.

Assistant Mayor Matteau inquires when this new system will start and where tickets can be purchased.

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Mr. Decamp states January is when the change will happen. The company will be coming out with a full information packet that will be on Decamp website. Patrons can continue to use pre purchased bag stickers.

Councilor Koloski apologizes to the employees.

KC Gardner explains they received fake money.

Councilor Limoges states it's always been a pleasure to go up to the transfer station. Thank you for stepping up when you did.

Councilor Contois expressed apologies for the kids and staff for what they have had to put up with.

Councilor Mooshian apologizes and thanks Decamp.

Councilor Batchelder states it is disgusting for citizens treating children with such disrespect.

Mayor Girard inquiries about pickups.

Mr. Decamp explains the pickup will be based geographically.

Councilor Koloski inquires how much money was put into this City property.

Decamp explains it is not a money-making process but wanted to serve the community. Mr. Decamp explains in detail the updates the company has done. Electrical in the blue building. Overhead doors. Close to 10,000.00 to the blue building alone. Improvements to office and life safety.

Mayor Girard thanks Director Gleason and Decamp. Mayor Girard apologizes for all that the company had to put up with.

UVLSRPC Letter of Support

Manager Manale explains letter of support weather related damages.

A motion was made by Councilor Koloski and seconded by Councilor Contois to support the UVLSRPC letter of support as written.

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U.S. Department of Transportation
Thriving Communities Program
1200 New Jersey Ave SE, Washington, DC 20590

**Re: City of Claremont Letter of Commitment to the UVLSRPC & TRORC
Proposal to the USDOT Thriving Communities – Regional Pilot Program**

Dear Monica Guerra,

The City of Claremont enthusiastically supports the grant proposal to the USDOT Thriving Communities Regional Pilot Program entitled “***Flood Resilient and Equitable Transportation Infrastructure for New Hampshire and Vermont***”, as submitted by the Upper Valley Lake Sunapee Regional Planning Commission (UVLSRPC) and the Two Rivers-Ottawaquechee Regional Commission (TRORC).

We commit to receiving the specialized support from UVLSRPC and TRORC, as detailed in the grant proposal, over a two-year period, which will serve to strengthen our existing partnership. Funding for added capacity for these two regional planning commissions in the form of a Resilience Coordinator is a strategic way to bolster our municipality’s ability to cope with our most urgent transportation vulnerabilities, especially in the face of extreme weather. As a small, rural community, we value the opportunity to partner with our neighboring towns to best leverage the skills and resources that the proposed Resilience Coordinator positions would coordinate across our region. In partnership with our neighboring towns and under the leadership of our Regional Planning Commission, we believe Claremont can better develop and implement engagement, infrastructure, and regulatory strategies for addressing our community's storm hazard resilience.

Our experience working with UVLSRPC on various other projects demonstrates the benefits of our existing relationship.

In Claremont, a massive gap in investment, technical assistance, and state resources has left our transportation infrastructure in a highly vulnerable condition. Our specific needs center on strategy and planning for upgrading stormwater systems and culverts, studying and assessing current conditions of related infrastructure, planning for increased precipitation events, and access to funding and engineering. To address this need, we would benefit from additional capacity, skill development, and peer learning to better

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understand and address these local challenges, develop shared goals with our neighboring communities, improve strategies to make change through local regulation and partnership, strengthen local relationships that can better withstand challenges and adapt as needed, and strategize how to improve and upgrade our vulnerable infrastructure. As part of this process, the Town expects to make progress in building a pipeline of projects, as well as consideration for changes to local land use strategies as well as changes to its capital improvement plan. In addition, the Town seeks to align this work with its Master Plan and hazard mitigation goals.

In order to respond to our increasing storm resiliency needs, we are aware that we must increase our capacity to understand the challenge and potential solutions to plan ahead rather than react to foreseen impacts. The advantage of doing so with the assistance of our Regional Planning Commission is that we can look beyond the formal funding methods and operations offered at Town meetings and instead explore creative and more strategic pathways to improving our infrastructure and community resilience to storm events. We are also excited about the possibility of learning from what our partners in this grant are doing and look forward to sharing resources, volunteers, and ideas to benefit the region.

Roll call:

O’Hearne –

Batchelder - Yes

Stone - Yes

Matteau -Yes

Koloski - Yes

Limoges -Yes

Contois - Yes

Mooshian -Yes

Girard - Yes

Motion carried 8-0

COMMITTEE REPORTS

HDC- Approved two certificates of appropriateness (soup kitchen, lead abatements).

Airport - Future items, possible hanger expansions.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Contois expresses the need to only hear from the mayor.

Councilor Koloski asks about double lane crossing in front of the new Dominos property.

Manager Manale the City has rejected the turn. The company will be seeking a third party to see what is necessary at the cost of the applicant.

Councilor Koloski stated while at polling locations he received feedback if there is a better way to do things when citizens come in to speak for citizens forum.

Councilor Koloski would like to support asking the City Manager to have a presentation from the company to the governing body.

Councilor Batchelder would be interested in seeing the presentation

Assistant Mayor Matteau would like to see the presentation as well.

Councilor Limoges would love to see the presentation

CONSULTATION WITH LEGAL COUNSEL

ADJOURNMENT

At 7:38 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to adjourn.

**Voice vote:
O’Hearne – Yes**

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Batchelder - Yes
Stone - Yes
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Limoges - Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion carried 8-0

Respectfully Submitted,

Jamie L. Foster De Rosa
Acting Clerk to the Council